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Case Number: 25SMCV01668 Hearing Date: July 28, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ASHLEIGH KASPSZAK,

Plaintiff,

v.

JANSEN

FAMILY, LLC, et al.,

Defendants.

Case No.:

25SMCV01668

Hearing Date: July 28, 2026

[TENTATIVE]

order RE:

DEFENDANT JENSEN FAMILY LLC'S MOTION TO

COMPEL PLAINTIFF ASHLEIGH KASPSZAK TO RETURN TO DEPOSITION TO ANSWER
QUESTIONS AND PRODUCE DOCUMENTS AND FOR SANCTIONS

BACKGROUND

On or

around August 13, 2008, Plaintiff Ashleigh Kaspszak ("Plaintiff") began leasing and living at 753 ½ Levering Avenue, Los Angeles, California 90024 (the "Property"). (FAC, ¶ 9.) Over the years, Plaintiff was asked to sign new lease agreements. (Id. at ¶ 11.) All lease agreements starting with August 1, 2019, identified Defendant Shirley Jansen as the owner/landlord on the lease and Plaintiff as the only tenant, despite knowing that Plaintiff's disabled sister had moved in. (Ibid.) In or around May 2021, Defendants Shirley Jansen and Susan Jansen formed the Jansen Family, LLC (collectively, "Defendants"). (Id. at ¶ 12.) Defendant Susan acknowledged that Plaintiff's sister was an occupant of the Property on May 24, 2023. (Id. at ¶ 19.)

Plaintiff alleges that

Defendants never adequately fixed a leak in the roof of the Property, allowing moldy conditions to return during rains. (Id. at ¶ 20.) During 2023-2024 winter seasons, the leaking became a problem and Plaintiff repeatedly contacted Defendants. (Id. at ¶ 21.) In March 2024, Plaintiff raised the issue of mold with Defendant Susan. Defendant Susan suggested the mold would be painted over. (Id. at ¶ 24.) Plaintiff replied that the area needed to be inspected and remediated. (Ibid.) On April 4, 2024, in response, Defendant Susan raised issues with Plaintiff's sister being in the Property despite not being on the lease. (Id. at ¶ 25.) On April 5, 2024, Defendants issued a 30 day notice demanding Plaintiff's sister move out. (Id. at ¶ 26.) When Plaintiff continued to have her disabled sister live with her, Defendants filed an Unlawful Detainer action against Plaintiff. (Id. at ¶ 27.) Judgment was entered in Plaintiff's favor and Defendants were estopped from claiming Plaintiff's sister was not a lawful resident. (Id. at ¶ 28.) As of February 7, 2025, the roof continues to leak and Defendants have not remediated the mold. (Id. at ¶ 29.) Defendants have slowed down or stopped repairs of the Property, including delaying providing Plaintiff a working heater. (Id. at ¶ 30.)

On April 2, 2025, Plaintiff filed a Complaint. On June 13, 2025, Plaintiff filed a First Amended Complaint ("FAC") alleging (1) negligence; (2) breach of contract; (3)

violation of Los Angeles Tenant Anti-Harassment Ordinance; (4) Retaliation; (5) Violation of Unruh Civil Rights Act; (6) Unlawful Housing Discrimination; and (7) Failure to Maintain Rental Housing in a Manner Fit for Occupation.

On July 21, 2025, a Cross-Complaint was filed. On August 11, 2025, Defendant Jansen Family, LLC ("Jansen") filed a First Amended Cross-Complaint ("FACC") alleging (1) breach of contract: tenant obstruction of owner access for repairs; (2) breach of the implied covenant of good faith and fair dealing; (3) implied contractual indemnity; (4) equitable indemnity; (5) contribution; and (6) professional negligence.

On June 18, 2026, Jansen filed this Motion to Compel Plaintiff's Return to Deposition to Answer Questions and Produce Documents and for Sanctions Against Plaintiff and Frank Marchetti in the Amount of \$11,610.00.

On July 14, 2026, Plaintiff filed an opposition.

On July 17, 2026, Jansen filed a reply.

LEGAL STANDARD

Under Code of Civil Procedure section 2025.480, if a deponent fails to answer any question or produce any document specified in a deposition notice or subpoena, the party seeking discovery may move the court for an order compelling that answer or production. A motion to compel further responses to a deposition subpoena for production of business records must be made within 60 days after service of the verified response, or on or before any specific later date to which the parties have agreed. (Code Civ. Proc., § 2025.480, subd. (b).) If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition. (Code Civ. Proc., § 2025.480(i).)

To

prevail, a party moving for an order compelling further responses to deposition questions must make “a fact-specific showing of relevance.”² (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448 [analogous rule for document production].) If “good cause” is shown by the moving party, the burden shifts to the responding party to justify any objections made.³ (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98 [analogous rule for document production].)⁴

DISCUSSION

A. Business

Income Documents

Jansen

argues that Plaintiff’s business income was placed at issue by Plaintiff when she claimed she had losses at the December 4, 2025 deposition. Jansen argues that Plaintiff put her business client list and income at issue because she stated under oath she has a decreased capacity to provide business services and can only provide business services to fewer customers as a result of the condition of the apartment and its effect upon her. Proof of Plaintiff’s consistent annual income or increased income impeaches Plaintiff’s claim that the condition of the apartment is so poor that she is entitled to 9 million dollars in damages. Jansen argues to be a protected privacy right, the information must actually be private financial information. Plaintiff should be ordered to answer the question regarding business income and produce documents about business income.

In

opposition, Plaintiff argues that the 94 page long separate statement only identifies three questions that Plaintiff failed to answer: (1) “approximately how much money did you earn in 2025”, (2) “How much money did you earn in 2024”, and (3) “how much money did you earn in 2023”. (Separate Statement, p.5, lines 6-17.) Plaintiff contends that Plaintiff is not making a claim in this action for lost income or loss of earning capacity, thus, these questions are irrelevant and infringe on her financial privacy. Plaintiff argues that the only relevance argued by Defendants is to Plaintiff’s withdrawn claims for loss of income and lost earning capacity. Thus, requests 35 to 69 requesting income documents infringe on Plaintiff’s privacy and Defendants have not met their burden of showing a compelling need for this discovery.

In

reply, Jansen argues that, while Plaintiff claims to have elected to waive any claim for lost income or earning capacity, Plaintiff has not reduced her \$8,000,000.00 damages claim at all and refused to sign a stipulation stating Plaintiff never had such claims in the first place. (Jansen, Decl., ¶ 8.)

Privacy concerns are not absolute; they must be balanced against other important interests. (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 37.) The court is required to carefully balance the right of privacy with the need for discovery. (Tylo v. Superior Court (1997) 55 Cal.App.4th 1379, 1386.) Invasion of a privacy interest is not a violation of the state constitutional right to privacy if the invasion is justified by a competing interest. (Hill, supra, 7 Cal.4th at p. 37.)

The party seeking the constitutionally protected information has the burden of establishing that the information sought is directly relevant to the claims. (Tylo, supra, 55 Cal.App.4th at p. 1386.) Confronted with a defense based on countervailing interests, the plaintiff may undertake the burden of demonstrating the availability and use of protective measures, safeguards, and alternatives to the defendant's conduct that would minimize the intrusion on privacy interests. (Hill, supra, 7 Cal.4th at p. 37.)

The Court is not persuaded by Plaintiff's argument that the information sought is not directly relevant. While Plaintiff claims to have withdrawn the claims for loss of income and lost earnings, Plaintiff has not provided any evidence to demonstrate this withdrawal and the damages request has not been reduced. Beyond this withdrawal, Plaintiff has proffered no other reason as to why further testimony and income documents would not be directly relevant to the damages at issue in this case. Moreover, Plaintiff's past testimony evidence that Plaintiff has placed her income at issue by stating that it was "an error" that Plaintiff's residence was listed as her place of self-employment and by claiming that Plaintiff changed her testimony as to income solely because she became "self-aware." (Ex. I., Plaintiff Transcript, April 22, 2026, 409:20-410:9; Ex. D, Plaintiff Transcript, April 22, 2026, 404:12-405:4.) Because Jansen has demonstrated direct relevance and Plaintiff has failed to demonstrate any alternatives to producing the subject testimony and documents regarding business income, the Court grants the motion to compel further testimony and documents regarding business income responding to requests numbers 35 to 69.

Additionally, as the Court compels further

deposition testimony, the Court will also grant Jansen's request to go beyond the 7-hour presumptive limit for depositions to include an additional 3 hours of deposition testimony.

B. Text

Messages between Plaintiff and Tayler Kirner

Next,

Jansen moves to compel all text messages between Plaintiff and Kirner for the period of several years. The requests state:

21.

All documents and writings (Evid. Code § 250) that comprise, refer or relate to

communications

with Tayler Kirner, related in any way to 753 ½ Levering Avenue Los

Angeles,

CA 90024.

22.

All documents and writings (Evid. Code § 250) that comprise, refer or relate to

communications

with Tayler Kirner, between January 1st, 2021 and present.

(Separate Statement, pp.

10-11.)

Jansen argues that a critical issue in this case is

Jansen's claim in the FACC that Plaintiff directed her boyfriend, Tayler Kirner ("Kirner"), to obstruct Jansen's contractors from making repairs to the subject apartment on May 8, 2025. Jansen contends that Plaintiff perjured herself during the deposition because Plaintiff first stated that she did not have video from May 8th and then later Plaintiff stated that Kirner had videoed the conduct of the contractors and sent those videos to Plaintiff on May 8, 2025 and that Plaintiff had sent Ring camera video to Tayler on May 8, 2025. (Ex. L-1, Plaintiff Transcript, December 4, 2025, 118:8-21; Ex. M., Plaintiff Transcript, April 22, 2026, 373:5-21.) Jansen argues that the texts between

Plaintiff and Kirner on May 8, 2025, are directly relevant to the fair determination of whether Plaintiff and Kirner obstructed Jansen's contractors from making repairs. Jansen argues that given the perjury, Plaintiff must produce all texts during the 4-year period requested without redactions.

In opposition, Plaintiff contends that Plaintiff produced all responsive documents to request number 21. Plaintiff contends that the non-responsive messages were redacted. Plaintiff contends that Plaintiff need not produce a privilege log for the redactions because they are not withheld based on privilege, rather the documents are merely not responsive. As to request number 22, Plaintiff did not produce documents because it was overbroad, requesting all communications from January 1, 2021, to the present between Plaintiff and Kirner. Plaintiff argues that this request is extremely invasive to the several year relationship between Plaintiff and Kirner. Moreover, Jansen has failed to demonstrate why they need every text message between Plaintiff and Kirner, how such a request is not overbroad, and why such a production should overcome Plaintiff and Kirner's rights to privacy.

The Court agrees with Plaintiff that Jansen has failed to meet its burden to demonstrate that all of the text messages from the relevant time period are directly relevant to determining the issues of this case. Several years' worth of communication between Plaintiff and her boyfriend Kirner, with no scope specified, is no doubt a substantial intrusion into their privacy. To overcome this, Jansen needed to establish that all of the messages are directly relevant to overcome this privacy concern.

(Tylo, *supra*, 55 Cal.App.4th at p. 1386.)

However, the Court finds that Jansen has demonstrated that the text messages between Jansen and Kirner on May 8, 2025 concerning the existence of video of contractors is directly relevant to the determination of whether Plaintiff obstructed construction at the apartment. Plaintiffs' deposition transcripts reveal that Plaintiff denies her original claim that no Ring footage exists from May 8, 2025 and that Ring footage and Kirner's video exist and were texted to each other on May 8, 2025. (Ex. L-1, Plaintiff Transcript, December 4, 2025, 118:8-21; Ex. M., Plaintiff Transcript, April 22, 2026, 373:5-21.) Accordingly, the Court grants the motion to compel as to the text messages between Plaintiff and Kirner on May 8, 2025. The remainder the motion to compel these text messages is denied.

C. Request

for a Protective Order Against Marchetti and to Disregard deposition Transcript Revisions

Jansen

requests a protective order against “coaching the witness” and to disregard a 101 day late, 36 page deposition transcript revision. Jansen argues that Plaintiff’s counsel, Marchetti, coached Plaintiff during the deposition and suggested answers through a 36 page “cheat sheet.” Plaintiff contends that Marchetti changed answers and struck his own statements from the deposition transcript. Plaintiff argues that this was a “coaching roadmap” that re-wrote 36 pages of the deposition transcript.

In

opposition, Plaintiff argues that Plaintiff has not provided evidence of Marchetti’s improper conduct or how Marchetti was coaching Plaintiff. Moreover, it is unclear how these assertions are relevant to the motion to compel. Plaintiff argues that the deposition revisions should be addressed in a separate motion.

The

Court agrees that Jansen’s request for an injunction against “coaching the witness” is outside the scope of the motion to compel. Furthermore, beyond pointing to transcript with Marchetti’s objections, Jansen has not provided evidence to demonstrate how Marchetti was specifically coaching the witness or if the alleged “cheat sheet” was provided to Plaintiff during the deposition. Additionally, it is unclear what deposition changes Jansen contends to challenge. Jansen merely attaches the 36-page deposition revisions and states that they change answers and strike out questions without any reference as to where those challenged revisions are located. Moreover, the Court has already found that additional deposition testimony is necessary as to the challenged testimony regarding business income.

Accordingly,

the requests for protective order and to strike deposition revisions are denied.

D. Sanctions

The

court shall impose a monetary sanction against any party, person, or attorney

who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.480(j).)

Jansen

requests \$11,610.00 in fees and costs for bringing the instant motion. In opposition, Plaintiff argues the motion has no merit, no sanctions should be awarded to Jansen, and Plaintiff should be awarded \$6,000.

As

the Court has granted and denied portions of the motion to compel, neither party has unsuccessfully made or opposed the motion to compel. Thus, considering the balance between the Court's decision to both grant and deny portions of the motion to compel, the Court finds that the imposition of sanctions would be unjust. Thus, the requests for sanctions are denied.

CONCLUSION

For the foregoing reasons, the Court GRANTS Defendant Jansen Family LLC's Motion to Compel further deposition testimony for a maximum of three hours regarding business income and document production regarding business income for requests numbers 35-69. The Court DENIES Jansen's request for production of all communications between Plaintiff and Kirner. Instead, the Court compels Plaintiff only to produce the text messages between Plaintiff and Kirner on May 8, 2025. The Court also DENIES Jansen's requests for a protective order and to strike the deposition revisions. Consequently, the requests for sanctions are DENIED.

DATED: July 28, 2026 _____

Edward

B. Moreton, Jr.

Judge

of the Superior Court